

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                           |                                     |                                                       |                                               |                                            |
|--------------------------------------------------|-----------------------------------------------------------|-------------------------------------|-------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>Laura Kastner                   | Team:<br>Team # 2                                         | CCRB Case #:<br>201401857           | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                  |                                                           |                                     | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 01/30/2014 8:15 PM | Location of Incident:<br>§ 87(2)(b) PSA 8<br>stationhouse | 18 Mo. SOL<br>7/30/2015             | Precinct:<br>43                                       |                                               |                                            |
| Date/Time CV Reported<br>Tue, 02/25/2014 7:24 PM | CV Reported At:<br>CCRB                                   | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Tue, 02/25/2014 7:24 PM |                                               |                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. POM Steve Higgins | 07734  | 950588 | PSA 8   |
| 2. POM Tony Montoni  | 13404  | 950907 | PSA 8   |
| 3. LT Renee Lee      | 00000  | 919942 | PSA 8   |

| Officer(s)            | Allegation                                                                                                                     | Investigator Recommendation         |
|-----------------------|--------------------------------------------------------------------------------------------------------------------------------|-------------------------------------|
| A . LT Renee Lee      | Abuse: In the vicinity of § 87(2)(b) in the Bronx, Lt. Renee Lee participated in the questioning of § 87(2)(b)                 | A . Alleged Victim<br>Uncooperative |
| B . LT Renee Lee      | Abuse: Lt. Renee Lee entered § 87(2)(b) in the Bronx.                                                                          | B . Unsubstantiated                 |
| C . POM Steve Higgins | Abuse: In the vicinity of § 87(2)(b) in the Bronx, PO Steve Higgins stopped § 87(2)(b)                                         | C . Unsubstantiated                 |
| D . POM Steve Higgins | Abuse: In the vicinity of § 87(2)(b) in the Bronx, PO Steve Higgins frisked § 87(2)(b)                                         | D . Substantiated                   |
| E . POM Steve Higgins | Abuse: In the vicinity of § 87(2)(b) in the Bronx, PO Steve Higgins searched § 87(2)(b)                                        | E . Unsubstantiated                 |
| F . POM Tony Montoni  | Abuse: In the vicinity of § 87(2)(b) in the Bronx, PO Tony Montoni threatened § 87(2)(b) with the use of force.                | F . Unsubstantiated                 |
| G . POM Steve Higgins | Force: In the vicinity of § 87(2)(b) in the Bronx, G . Unsubstantiated PO Steve Higgins used physical force against § 87(2)(b) |                                     |
| H . POM Tony Montoni  | Force: In the vicinity of § 87(2)(b) in the Bronx, H . Unsubstantiated PO Tony Montoni used physical force against § 87(2)(b)  |                                     |
| I . POM Tony Montoni  | Force: In the vicinity of § 87(2)(b) in the Bronx, I . Unsubstantiated PO Tony Montoni struck § 87(2)(b) with an asp.          |                                     |
| J . POM Tony Montoni  | Force: In the vicinity of § 87(2)(b) in the Bronx, J . Unsubstantiated PO Tony Montoni used a chokehold against § 87(2)(b)     |                                     |
| K . POM Tony Montoni  | Discourtesy: In the vicinity of § 87(2)(b) in the Bronx, PO Tony Montoni spoke discourteously to § 87(2)(b)                    | K . Alleged Victim<br>Uncooperative |
| L . LT Renee Lee      | Abuse: At the PSA 8 stationhouse, Lt. Renee Lee authorized the strip search of § 87(2)(b)                                      | L . Exonerated                      |

| Officer(s)           | Allegation | Investigator Recommendation |
|----------------------|------------|-----------------------------|
| § 87(4-b) § 87(2)(g) |            |                             |

## Case Summary

On February 25, 2014, § 87(2)(b) filed a complaint via the CCRB's website (encl. D1-D6). At approximately 8 p.m. on January 30, 2014, § 87(2)(b) was home, at § 87(2)(b) in the Bronx, when he opened his door and saw § 87(2)(b) interacting with officers from PSA 8. The following allegations resulted:

- **Allegation A – Abuse of Authority: In the vicinity of § 87(2)(b) in the Bronx, Lt. Renee Lee participated in the questioning of § 87(2)(b)**
- **Allegation K – Discourtesy: In the vicinity of § 87(2)(b) in the Bronx, PO Tony Montoni spoke discourteously to § 87(2)(b)**  
§ 87(2)(g) it is recommended that **Allegations A and K** be closed as **victim uncooperative**.
- **Allegation B – Abuse of Authority: Lt. Renee Lee entered § 87(2)(b) in the Bronx.**
- **Allegation C – Abuse of Authority: In the vicinity of § 87(2)(b) in the Bronx, PO Steve Higgins stopped § 87(2)(b)**
- **Allegation E – Abuse of Authority: In the vicinity of § 87(2)(b) in the Bronx, PO Steve Higgins searched § 87(2)(b)**
- **Allegation F: Abuse of Authority: In the vicinity of § 87(2)(b) in the Bronx, PO Tony Montoni threatened § 87(2)(b) with the use of force.**
- **Allegation G – Force: In the vicinity of § 87(2)(b) in the Bronx, PO Steve Higgins used physical force against § 87(2)(b)**
- **Allegation H – Force: In the vicinity of § 87(2)(b) in the Bronx, PO Tony Montoni used physical force against § 87(2)(b)**
- **Allegation I – Force: In the vicinity of § 87(2)(b) in the Bronx, PO Tony Montoni struck § 87(2)(b) with an asp.**
- **Allegation J – Force: In the vicinity of § 87(2)(b) in the Bronx, PO Tony Montoni used a chokehold against § 87(2)(b)**  
§ 87(2)(g)  
It is therefore recommended that **Allegations B, C and E through J** be closed as **unsubstantiated**.
- **Allegation D – Abuse of Authority: In the vicinity of § 87(2)(b) in the Bronx, PO Steve Higgins frisked § 87(2)(b)**  
§ 87(2)(g)  
It is therefore recommended that **Allegation D** be closed as **substantiated**.
- **Allegation L – Abuse of Authority: At the PSA 8 stationhouse, Lt. Renee Lee authorized the strip search of § 87(2)(b)**  
§ 87(2)(g)  
It is therefore recommended that **Allegation L** be closed as **exonerated**.

- § 87(4-b), § 87(2)(g)

This case was not mediation eligible.

## Results of Investigation

### Civilian Statements

#### Complainant/Victim: § 87(2)(b)

- § 87(2)(b) a black man § 87(2)(b) with brown hair and brown eyes, was § 87(2)(b) at the time of the incident.
- § 87(2)(b)

#### Statements Made to Medical Personnel

§ 87(2)(b)'s Pre-Hospital Care Report Summary notes that § 87(2)(b) his chief complaint was "my knee hurts." He said he was hit with a stick to his right knee. § 87(2)(b) told medical personnel at § 87(2)(b) that a police club struck his right knee but he was unsure of the number of times he was struck (see enclosed folder).

#### CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on March 7, 2014 (encl. D8-D20) and provided an additional phone statement on April 24, 2014 (encl. D21). § 87(2)(g)

On January 30, 2014, § 87(2)(b) was home, inside of § 87(2)(b) in the Bronx, a NYCHA complex, waiting for his friend § 87(2)(b) who arrived at approximately 8:30 p.m. When § 87(2)(b) opened his front door, he saw five uniformed officers, including PO Steve Higgins, PO Toni Montoni and Lt. Renee Lee talking with § 87(2)(b) (For officer descriptions, see encl. D8-D20.) PO4 and PO5 were both described as men in their 20s or early 30s with black hair. The investigation identified one of these officers as PO Gustavo Cadme. The fifth officer remains unidentified.

§ 87(2)(b) heard PO Higgins ask § 87(2)(b) what was in his pocket. [In his April 8, 2014 phone statement, § 87(2)(b) said § 87(2)(b) was also asked what was inside the bag]. § 87(2)(b) answered the question and removed two Coronas and a cranberry juice from a black bag and a pint of Hennessy from his left rear pants pocket. [In his April 8, 2014 phone statement, § 87(2)(b) clarified that § 87(2)(b) removed the items on his own and was not asked to do so.] PO Montoni asked § 87(2)(b) for identification and he complied. One of the officers then ran a warrant check.

§ 87(2)(b) stood near his open apartment door. Lt. Lee asked if he lived there and § 87(2)(b) said he did. Lt. Lee approached § 87(2)(b)'s door. § 87(2)(b) stepped back further into his apartment and began to close the door. Lt. Lee placed her left foot in the door frame, preventing § 87(2)(b) from fully closing it. Lt. Lee kept her foot, which was past the door frame and partially inside the apartment, there for five to ten minutes as § 87(2)(b) kept the door half

closed and poked his head

out. Approximately 15 minutes into the incident, § 87(2)(b) warrant search came back negative. Lt. Lee removed her foot and § 87(2)(b) entered § 87(2)(b)'s apartment.

§ 87(2)(b) and § 87(2)(b) spent the next hour drinking alcohol, but neither was intoxicated. § 87(2)(b) also changed into a sweater, a zippered vest and tan jeans. He placed six “balled up” condoms in a clear plastic Ziploc bag inside his left interior chest vest pocket. § 87(2)(b) and § 87(2)(b) exited the apartment. After § 87(2)(b) locked his door, he saw PO Higgins and PO Montoni standing alone at the top of the hallway staircase. Higgins ran downstairs and ordered him to get against the wall and put his hands up while grabbing § 87(2)(b)'s shoulder and placing him against the wall in one quick movement. § 87(2)(b) was ordered to leave and complied.

PO Higgins reached into § 87(2)(b)'s two front vest pockets, interior vest pocket and front pants pockets. He then frisked § 87(2)(b)'s rear pants pockets and legs. PO Montoni called Lt. Lee and told her to return. When the search concluded, PO Higgins asked for § 87(2)(b)'s identification, and he complied. PO Higgins asked § 87(2)(b) “What’s inside your pocket?,” referring to the pocket containing the condoms. § 87(2)(b) said PO Higgins had already looked in his pockets and should finish doing what he wanted to do. PO Higgins reached into that pocket again.

PO Montoni reached his hand toward the right side of his utility belt where he had an asp. PO Montoni began to remove the asp as he approached § 87(2)(b). Scared, § 87(2)(b) ran out of the building. PO Higgins and PO Montoni caught up to him and grabbed his vest, which slid off of his body and caused the officers to fall to the ground. § 87(2)(b) continued running and the officers followed. § 87(2)(b) was out of breath when he reached the rear of his building so he stopped and put his hands to his sides indicating that he gave up. Without anyone saying a word, PO Montoni struck § 87(2)(b) with his asp once on the outside of his right knee. Both officers tackled him to the ground. § 87(2)(b) who landed on his back but was rolled onto his stomach, received no injury as a result.

It took PO Higgins two to five minutes to handcuff § 87(2)(b). During that time, § 87(2)(b)'s right leg was bent and his foot was in the air, but he never kicked. PO Montoni struck § 87(2)(b) with his asp twice more on the inside of his right knee. § 87(2)(b) whose hands were behind his back, first said he did not resist in any way, but then acknowledged that he may have pulled his hands away. One of the officers, he could not tell which one, placed a knee on § 87(2)(b)'s back and applied pressure. This, along with him being out of breath, caused § 87(2)(b) to have difficulty breathing. § 87(2)(b) shuffled his shoulders, moved his torso and lifted his right shoulder off the ground in an attempt to roll onto his back to breathe. After § 87(2)(b) was handcuffed, he continued moving in the same fashion. PO Montoni placed his asp against the back of § 87(2)(b)'s neck and while holding each end with one hand, pushed down for nearly a minute.

§ 87(2)(b) was escorted to a marked van. Lt. Lee, PO4 and PO5 then arrived, as did § 87(2)(b)'s neighbors, § 87(2)(b) and “§ 87(2)(b) an upstairs neighbor. § 87(2)(b) asked the officers for § 87(2)(b)'s apartment keys to care for his mother while he was in custody.

§ 87(2)(b) was transported to the stationhouse. There, PO Higgins and PO Montoni escorted him to a bathroom. No one else was present. The officers ordered § 87(2)(b) to remove his clothing and § 87(2)(b) complied. He wore two thermal shirts underneath his sweater, thermal

pants underneath his pants, a brown belt and a hat. The officers patted down his clothing and then allowed him to get dressed.

§ 87(2)(b) requested medical attention while in custody and an ambulance subsequently transported him to § 87(2)(b). He emailed photos of his knee injury to the CCRB on April 9, 2014 (encl. D19).

**Victim:** § 87(2)(b)

- § 87(2)(b) a black man, was § 87(2)(b) at the time of the incident.

**Phone Statement**

On March 20, 2014 and April 8, 2014, § 87(2)(b) provided brief phone statements (encl. D22), § 87(2)(g)

Two officers held the door open for § 87(2)(b) as he entered § 87(2)(b)'s building. § 87(2)(b) waited for § 87(2)(b) to answer his door as three additional officers arrived. As § 87(2)(b) opened his door, the officers approached § 87(2)(b) and ordered him to stop. They asked what § 87(2)(b) was doing and why he was there. He said he came to visit § 87(2)(b) and to have a few drinks. Lt. Lee walked toward § 87(2)(b)'s apartment door and as § 87(2)(b) tried to close it, Lt. Lee positioned her foot half in the doorframe and half inside § 87(2)(b)'s apartment.

§ 87(2)(b) and § 87(2)(b) were in § 87(2)(b)'s apartment for no more than 30 minutes. As they exited, PO Higgins and PO Montoni appeared. PO Higgins patted down § 87(2)(b) and reached into his pockets. PO Montoni was seemingly about to do the same to § 87(2)(b) but § 87(2)(b) told him that it had already been done 30 minutes prior, so PO Montoni ordered § 87(2)(b) to wait outside. While outside, § 87(2)(b) saw § 87(2)(b) run out of the building while being chased by the officers. When they turned the corner, § 87(2)(b) lost sight of them.

**Victim:** § 87(2)(b)

- § 87(2)(b) a black woman, was § 87(2)(b) at the time of the incident.

**Phone Statement**

On March 20, 2014, § 87(2)(b) provided a phone statement (encl. D23).

§ 87(2)(b) was in her apartment when her § 87(2)(b) grandson, § 87(2)(b), ran upstairs and said that § 87(2)(b) was being beaten by the police with a stick and jumped on. § 87(2)(b) looked out her window and saw two or three officers rolling § 87(2)(b) around on the ground. § 87(2)(b) ran downstairs. Upon her arrival, § 87(2)(b) was inside a patrol car. PO Montoni, identified via investigation, told the other officers that his "book" was missing and they began looking for it. § 87(2)(b) asked for § 87(2)(b)'s apartment key to care for his mother and PO Montoni said, "I don't give a fuck." § 87(2)(b) explained that § 87(2)(b)'s mother was very ill and said she just needed the key. Lt. Lee tried to convince PO Montoni to give § 87(2)(b) the key, but PO Montoni said, "I don't give a fuck. I don't give a fuck. I want my book." PO Montoni was speaking to Lt. Lee.

**Attempts to Contact Civilians**

- In his April 24, 2014 phone statement, § 87(2)(b) said that § 87(2)(b) was nervous to

participate in this investigation, but told § 87(2)(b) that he would contact the CCRB. However, § 87(2)(b) failed to do so. Without § 87(2)(b)'s cooperation in providing a full name or contact information for § 87(2)(b) he was unable to be reached for a statement.



- In his March 20, 2014 phone statement, § 87(2)(b) said that due to his busy schedule, he was unsure of whether he would be available to be interviewed at the CCRB. When called on April 8, 2014, § 87(2)(b) said he had recently obtained a job and would contact the CCRB in a day or two to schedule an appointment once he knew his schedule. However, § 87(2)(b) failed to do so. Between April 17, 2014 and May 8, 2014, § 87(2)(b) was called three more times and three voicemail messages were left for him. On April 11, 2014 and April 28, 2014, two unreturned letters were mailed to § 87(2)(b).
- In her March 20, 2014 phone statement, § 87(2)(b) said that § 87(2)(b) lived with his mother and that she wished to speak with her prior to providing § 87(2)(b)'s mother's contact information. § 87(2)(b) wished to confer with her babysitter prior to scheduling an in-person statement for herself and agreed to contact the CCRB on March 24, 2014 in regard, but failed to do so. Between April 8, 2014 and May 12, 2014, § 87(2)(b) was called six times, but voicemail messages could not be left. Unreturned letters were sent to § 87(2)(b) and § 87(2)(b) attention on April 8, 2014 and April 17, 2014.

### **NYPD Statements:**

#### **Subject Officer: PO STEVE HIGGINS**

- *For PO Higgins' pedigree and assignment information, see encl. E28.*

#### **Memo Book**

- PO Higgins had no memo book entries for the first part of this incident (encl. E13-E18).
- 8:56 p.m., Vertical patrol at § 87(2)(b) 9 p.m., Two males stopped for loitering in lobby. § 87(2)(b) and § 87(2)(b) Noticed bulge in § 87(2)(b)'s left jacket pocket. While trying to ascertain the reason for bulge, the defendant pushed my partner and myself and started for the front door. A foot chase and struggle ensued where defendant removed jacket. Upon apprehending suspect, the jacket was not recovered and probably picked up by second male. 9:12 p.m., One under arrest (encl. E13-E18).

#### **Stop, Question and Frisk Report**

§ 87(2)(b) was stopped at 9 p.m. after being observed for one minute for suspicion of possessing a weapon. No one else was questioned, stopped or frisked. § 87(2)(b) was frisked due to furtive movement, refusal to comply with officer's directions leading to reasonable fear for safety, and suspicious bulge/object (bulge in left jacket; would not allow the officers to touch). § 87(2)(b) was searched as a result of reasonable suspicion that he possessed a weapon (10 safety pins which could be used to escape). No weapon was found. § 87(2)(b) was agitated (encl. E19-E20).

#### **Complaint Report and Arrest Report**

§ 87(2)(a) 160.50

#### **CCRB Statement**

PO Steve Higgins was interviewed at the CCRB on July 18, 2014 (encl. E28-E32).

At an unknown time on January 30, 2014, PO Higgins and PO Tony Montoni were conducting a vertical patrol inside of § 87(2)(b) when Lt. Renee Lee requested they come down to the first floor hallway. Upon their arrival, PO Higgins observed Lt. Lee and PO Cadme interacting with § 87(2)(b) who was standing in the hallway, and § 87(2)(b) who was standing in the doorway of his apartment. Both men appeared agitated. No additional officers

were present. Lt. Lee spoke to § 87(2)(b) and § 87(2)(b) about not loitering. PO Higgins could not recall if either civilian was asked to produce identification. PO Higgins and PO Montoni served as an extra police presence, but neither of them questioned § 87(2)(b). PO Higgins did not recall if § 87(2)(b) tried to close his apartment door and did not recall Lt. Lee placing her foot in the door frame, but he stated that he knew Lt. Lee did not place her foot inside § 87(2)(b)'s apartment. After about five minutes, § 87(2)(b) and § 87(2)(b) entered the apartment. No summonses resulted. PO Higgins and PO Montoni then resumed their vertical patrol.

As PO Higgins and PO Montoni later walked downstairs, PO Higgins saw § 87(2)(b) and § 87(2)(b) standing in the first floor hallway approximately five feet away. When § 87(2)(b) saw the officers, he appeared nervous, agitated, and made “furtive movements.” § 87(2)(b) seemed to not be sure if he was coming or going and would take a few steps toward his apartment door and then a few steps toward the building’s front door. PO Higgins also noticed a bulge in § 87(2)(b)'s left chest jacket pocket. PO Higgins could not describe the bulge or estimate its size and said it was “just a bulge [that was] not out printed.” PO Higgins decided to stop § 87(2)(b). PO Higgins noted that there had been lot of shootings at the Soundview Projects, which was why the officers were there, but he did not know if there was any indication that § 87(2)(b) or § 87(2)(b) had a weapon on them or were involved in any shootings.

PO Higgins could not recall if § 87(2)(b) was placed against a wall. He asked § 87(2)(b) for identification and PO Montoni asked § 87(2)(b) for identification. The officers recorded § 87(2)(b)'s information in their memo books and told him that this was the second time they saw him in the lobby. Throughout the interaction, § 87(2)(b) was “shaking like a leaf” and his legs were “quivering,” which led PO Higgins to believe that “something was up with him.” § 87(2)(b) was told to leave and he left a couple minutes after the officers had approached.

Because § 87(2)(b) was already stopped and because of his behavior, PO Higgins frisked § 87(2)(b)'s pants pockets area to ensure he had no weapons. PO Higgins did not frisk the bulge and did not reach into § 87(2)(b)'s pockets. As PO Higgins frisked § 87(2)(b) but before he could get a good look at the bulge and decide what he believed it to be, PO Higgins asked § 87(2)(b) either what the object was or to show the officers what it was. He later said his exact words were, “What’s in your pocket?” PO Higgins asked if he could see what was inside of § 87(2)(b)'s pocket. § 87(2)(b) began unzipping his jacket to retrieve the object and then pushed PO Higgins and PO Montoni in their chests and fled. PO Higgins did not see PO Montoni reach toward his waist band prior to this.

The officers chased § 87(2)(b) and caught up to him near the building front door. They grabbed onto his jacket, but § 87(2)(b) wiggled his torso, slipped out of the jacket and continued running. After running about 200 feet, PO Higgins caught up to § 87(2)(b) who never indicated that he gave up. PO Higgins attempted to pull § 87(2)(b)'s arms behind his back to rear handcuff him, but § 87(2)(b) shrugged his shoulders and refused to comply. A brief struggle ensued where PO Higgins grabbed § 87(2)(b)'s hands and pulled him to the ground. No additional physical force was used prior to getting § 87(2)(b) on the ground. PO Higgins did not believe PO Montoni made physical contact with § 87(2)(b) prior to this point.

PO Higgins squatted over § 87(2)(b) who was lying on his stomach, and tried to pull his hands behind his back. The only thing PO Higgins saw § 87(2)(b) do to resist was physically refuse to bring his arms behind his back. PO Higgins did not have a view of PO Montoni, who was near

§ 87(2)(b)'s feet. PO Higgins did not recall if he ever saw PO Montoni's asp out or if he ever saw PO Higgins strike § 87(2)(b) with his asp.

After struggling on the ground for two to five minutes, the officers were able to bring § 87(2)(b)'s arms behind his back and handcuff him. § 87(2)(b) who had stopped resisting, was immediately stood up. PO Higgins did not recall if he placed his knee in § 87(2)(b)'s back and applied pressure. He did not see PO Montoni do so. PO Higgins could not recall whether PO Montoni placed his asp against § 87(2)(b)'s neck.

The officers put over the radio that they had one under and Lt. Lee and possibly PO Cadme arrived. § 87(2)(b)'s jacket was not recovered, so the officers never determined what the object in his pocket was. The officers first searched for PO Montoni's memo book, lost during the foot pursuit, and then transported § 87(2)(b) to the stationhouse. PO Higgins did not recall if § 87(2)(b) was strip-searched at the stationhouse.

PO Higgins prepared the Stop, Question and Frisk Report for § 87(2)(b) but did not prepare one for § 87(2)(b) and did not know whether another officer did. Upon review of the report, PO Higgins said that § 87(2)(b) was suspected of criminal possession of a weapon due to the bulge in his jacket and his furtive movements. PO Higgins did not recall what direction § 87(2)(b) refused to comply with. This form mentions the safety pins that were recovered at the stationhouse because it was prepared after PO Montoni informed PO Higgins of their presence.

**Subject Officer: PO TONY MONTONI**

- *For PO Montoni's pedigree and assignment information, see encl. E5.*

**Memo Book**

PO Montoni had no memo book entries for the first part of this incident and his entries for the second part of this incident were practically identical to PO Higgins's memo book entries (encl. E1-E4). PO Montoni said that because his memo book was lost and because he and PO Higgins typically co-write their memo book entries, he copies PO Higgins' entries following this incident.

**CCRB Statement**

PO Montoni was interviewed at the CCRB on July 14, 2014 (encl. E5-E9). § 87(2)(g)

§ 87(2)(b) was initially stopped for loitering in the first floor lobby by Lt. Lee. PO Montoni could not recall whether he or PO Higgins questioned § 87(2)(b). He did not see Lt. Lee place her foot on or past the door frame of § 87(2)(b)'s apartment. PO Montoni and PO Higgins had no interactions with § 87(2)(b) at this time.

Later, PO Montoni and PO Higgins saw § 87(2)(b) and § 87(2)(b) talking and standing around in the first floor lobby. The officers approached and PO Higgins stopped the men to ensure they lived in or belonged in the NYCHA building as they were suspected of loitering. § 87(2)(b) was allowed to leave because he was with § 87(2)(b) whose identification proved that he resided in the building.

The officers initially intended to allow § 87(2)(b) to leave as well for the same reason but during the stop, PO Higgins observed a bulge in § 87(2)(b)'s jacket. PO Montoni stood behind PO Higgins and did not see the bulge. PO Higgins asked § 87(2)(b) about the bulge, but PO

Montoni could not recall what was said. PO Montoni could not recall if PO Higgins frisked the pocket, but said that PO Higgins never reached into the pocket. § 87(2)(b) “got a little nervous” and less than a minute into the stop, he pushed off of PO Higgins and pushed PO Montoni into a wall, knocking PO Montoni’s memo book out of his hand, and ran toward the exit of the building. PO Montoni had made no movements toward his waistband.

An approximate 10-second foot pursuit ensued. The officers ordered § 87(2)(b) to stop. § 87(2)(b) slowed down, but did not stop running and did nothing to indicate that he gave up. PO Montoni saw PO Higgins catch up to § 87(2)(b) wrap his arms around § 87(2)(b)’s upper body and either pull or push him to the ground. As PO Montoni arrived to the struggle, PO Higgins was on the ground holding § 87(2)(b)’s upper body, but § 87(2)(b) was kicking. PO Montoni removed his asp and struck § 87(2)(b)’s leg with it two or three times in order to restrain him. § 87(2)(b) screamed and stopped kicking.

§ 87(2)(b) was on the ground for about 15 seconds while the officers ordered him to stop resisting. Aside from kicking, PO Montoni could not recall whether § 87(2)(b) did anything else to resist. § 87(2)(b) did not resist being handcuffed. No officer placed their knee on § 87(2)(b)’s back and applied pressure and § 87(2)(b) never complained of having trouble breathing. PO Montoni could not recall if he placed his asp on § 87(2)(b)’s neck.

PO Montoni spoke with Lt. Lee at the stationhouse about strip-searching § 87(2)(b) because he had multiple layers of clothes on and multiple safety pins pinning the sleeves of his clothing together. § 87(2)(b) could not be lodged with safety pins. The strip search was negative.

**Subject Officer: LT. RENEE LEE**

- For Lt. Lee’s pedigree and assignment information, see encl. E36.

**Memo Book**

Lt. Lee’s memo book entries were consistent with her CCRB statement (encl. E33-E35).

**CCRB Statement**

Lt. Lee was interviewed at the CCRB on October 2, 2014 (encl. E36-E40). § 87(2)(g)

At approximately 8 p.m., Lt. Lee, PO Cadme, PO Higgins and PO Montoni were outside of § 87(2)(b) addressing the condition of people hanging out and drinking in the first floor lobby because PSA 8 had received complaints. Lt. Lee observed § 87(2)(b) standing alone in the lobby. Lt. Lee told her officers to conduct a vertical patrol of the building. After observing § 87(2)(b) for about five minutes, the officers entered the building and approached him.

Lt. Lee primarily interacted with § 87(2)(b) and intended to determine why he was there, to get him to leave and to see what his responses to her questions would be. She asked if § 87(2)(b) was visiting someone and did not recall him being asked more questions or to produce identification. § 87(2)(b) was unable to “give direct information.” He shook his head, but did not make many statements, looked like he did not know which way to go, seemed dazed and out of it and turned his body sideways. Lt. Lee described § 87(2)(b) behavior as weird. [One of Lt. Lee’s LBA representatives had her confirm that by failing to provide a sufficient answer to her question, Lt. Lee’s suspicion that § 87(2)(b) did not reside in the building was heightened.] Aside from loitering, Lt. Lee did not recall § 87(2)(b) being suspected of any

other crimes or violations. [One of Lt. Lee’s representatives had her confirm that anyone who is inside of a NYCHA complex and does not live there is trespassing.] Lt. Lee could not recall if anyone asked § 87(2)(b) what was in his pockets or if he removed their content.

Two to five minutes after Lt. Lee first observed § 87(2)(b) § 87(2)(b) appeared in the doorway of an apartment and said he knew § 87(2)(b) Lt. Lee, who stood in the hallway in front of the apartment door, asked if § 87(2)(b) lived in the building and § 87(2)(b) said he did. § 87(2)(b) provided a name for § 87(2)(b) but the officer(s) standing with § 87(2)(b) told Lt. Lee it was not the name § 87(2)(b) gave to them. § 87(2)(b) invited § 87(2)(b) into the apartment. Lt. Lee did not recall § 87(2)(b) attempting to close the apartment door during the interaction and did not recall placing her foot in the doorframe or inside of the apartment.

Lt. Lee instructed PO Higgins and PO Montoni to complete the vertical patrol as she and PO Cadme continued addressing the condition in another building within the complex. She did not provide the officers with instructions on what to do if they saw § 87(2)(b) or § 87(2)(b) again. Within 20 minutes, Lt. Lee was contacted by PO Higgins and PO Montoni, who said they had an arrest. Upon approach, Lt. Lee observed § 87(2)(b) handcuffed on the ground.

Lt. Lee was informed that when § 87(2)(b) was searched at the stationhouse, he was found with about 50 safety pins on his clothing, including on his coat sleeves and possibly on his long-johns. Believing that this was “a little suspicious” and given that § 87(2)(b) could use safety pins not recovered to harm himself or officers while in custody, or that such safety pins could be concealing a weapon such as a razor or switchblade, Lt. Lee authorized a full-body strip search.

Lt. Lee was unaware of any Stop, Question and Frisk Reports being prepared in connection with this incident. She noted that that the plan was to try to eliminate the loitering, not stop § 87(2)(b) who she believed had been free to leave during the encounter.

### **Medical Records**

§ 87(2)(a) PHL § 18(6), § 87(2)(b)

### **Arrest for Incident and Disposition**

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)], § 87(2)(a) 160.50

### **Status of Civil Proceedings**

§ 87(2)(b) and § 87(2)(b) have not filed Notices of Claim with the City of New York as of June 26, 2014, nearly two months past the filing deadline, with regard to the incident.

### **Civilians’ Criminal History**

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### **Civilians' CCRB History**

This is the first CCRB complaint filed by § 87(2)(b) and the first in which § 87(2)(b) and § 87(2)(b) are participants (encl. C1-C3).

### **Subject Officers' CCRB History**

Lt. Lee, a 16-year-member-of-the-service, and PO Higgins and PO Montoni, three-year-members-of-the-service, have no substantiated CCRB allegations against them (encl. B1-B3).

## **Conclusion**

### **Identification of Subject Officers**

PO Higgins, PO Montoni and Lt. Lee acknowledged interacting with § 87(2)(b) and § 87(2)(g) § 87(2)(b) § 87(2)(g)

Additionally, although PO Montoni denied speaking discourteously toward § 87(2)(b) she identified that subject officer as the tall white man who lost his memo book and PO Montoni, who fits that physical description, is also undisputedly the officer who lost his memo book.

§ 87(2)(g).

### **Allegations Not Pled**

- § 87(2)(g) § 87(2)(g) § 87(2)(g) § 87(2)(g)
- § 87(2)(g) § 87(2)(g) § 87(2)(g) § 87(2)(g) § 87(2)(g)
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## Investigative Findings and Recommendations

### Allegation A – Abuse of Authority: In the vicinity of § 87(2)(b) in the Bronx, Lt. Renee Lee participated in the questioning of § 87(2)(b)

§ 87(2)(b) alleged that when he opened his apartment door, he saw § 87(2)(b) interacting with the officers. § 87(2)(b) said he heard an officer ask § 87(2)(b) what was in the bag he was carrying and what was in his pocket. However, in his phone statement, § 87(2)(b) only mentioned the officers asking what he was doing and where he had come from. Lt. Lee only recalled § 87(2)(b) being asked if he was visiting someone, PO Higgins only recalled § 87(2)(b) being told not to loiter and PO Montoni did not recall this aspect of the incident.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **victim uncooperative**.

### Allegation B – Abuse of Authority: Lt. Renee Lee entered § 87(2)(b) in the Bronx.

§ 87(2)(b) alleged that when he tried to close his apartment door, Lt. Lee stopped him by placing her foot halfway in the doorframe and halfway inside of his apartment. § 87(2)(b) corroborated § 87(2)(b)'s version of events. However, Lt. Lee said her feet remained inside the hallway throughout the incident and PO Higgins and PO Montoni corroborated her version of events. § 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

### Allegation C– Abuse of Authority: In the vicinity of § 87(2)(b) in the Bronx, PO Steve Higgins stopped § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that as PO Higgins approached, he ordered § 87(2)(b) to get against the wall and put his hands up while grabbing § 87(2)(b)'s shoulder and placing him against the wall in one quick movement, but PO Higgins and PO Montoni did not recall whether PO Higgins approached § 87(2)(b) in the described manner.

§ 87(2)(g)

it is recommended that **Allegation C** be closed as **unsubstantiated**.

### Allegation D – Abuse of Authority: In the vicinity of § 87(2)(b) in the Bronx, PO Steve Higgins frisked § 87(2)(b)

It is undisputed that PO Higgins frisked § 87(2)(b). § 87(2)(b) said that PO Higgins frisked his rear pants pockets and legs. PO Higgins only acknowledged frisking § 87(2)(b)'s pants pockets.

An officer may frisk an individual when the officer has reasonable suspicion that the individual is in possession of a weapon. People v. DeBour, 40 N.Y.2d 210 (1976) (encl. A1-A11). Innocuous behavior does not generate a founded or reasonable suspicion that criminality is afoot. People v.

Hampton, 200 A.D.2d 466 (1994) (encl. A12-a14). Shapeless bulges do not provide reasonable suspicion that a person is armed. People v. Marine, 142 A.D.2d 368 (1<sup>st</sup> Dept. 1989) (encl. A15-A17).

PO Higgins said he frisked § 87(2)(b) because § 87(2)(b) was already stopped and because of § 87(2)(b)'s behavior. He recalled that § 87(2)(b) was nervous, agitated, seemed to be unsure whether he was coming or going, was "shaking like a leaf" and that his legs were "quivering."

§ 87(2)(g)

§ 87(2)(b) PO Higgins himself acknowledged that he did not know if there was any indication that § 87(2)(b) had a weapon on him during this aspect of the encounter. Additionally, despite PO Higgins noting the presence of a shapeless bulge in § 87(2)(b)'s jacket, PO Higgins described it as "just a bulge [that was] not...out printed" and denied patting it down during the course of the frisk, instead frisking pants pockets where no bulge had been seen by the officer at all.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation D** be closed as **substantiated**.

**Allegation E – Abuse of Authority: In the vicinity of § 87(2)(b) in the Bronx, PO Steve Higgins searched § 87(2)(b)**

**Allegation F: Abuse of Authority: In the vicinity of § 87(2)(b) in the Bronx, PO Tony Montoni threatened § 87(2)(b) with the use of force.**

§ 87(2)(b) alleged that PO Higgins reached into his vest and pants pockets in the hallway of § 87(2)(b)'s building and that PO Montoni reached his hand toward the right side of his utility belt and began to remove his asp as he approached § 87(2)(b) in the hallway. However, PO Higgins denied searching § 87(2)(b). PO Montoni denied reaching for his asp, and both officers denied seeing either of the alleged actions done by each other. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations E and F** be closed as **unsubstantiated**.

**Allegation G – Force: In the vicinity of § 87(2)(b) in the Bronx, PO Steve Higgins used physical force against § 87(2)(b)**

**Allegation H – Force: In the vicinity of § 87(2)(b) in the Bronx, PO Tony Montoni used physical force against § 87(2)(b)**

**Allegation I – Force: In the vicinity of § 87(2)(b) in the Bronx, PO Tony Montoni struck § 87(2)(b) with an asp.**

It is undisputed that after § 87(2)(b) fled from the officers, force was used against him. § 87(2)(b) alleged that after he indicated that he gave up, PO Montoni struck him with his asp in the knee once and that both officers bear hugged him to the ground. Once on the ground, in response to § 87(2)(b) bending, but not kicking his leg, shuffling his shoulders, moving his torso and lifting his shoulder off the ground, he said PO Montoni struck him twice more in his knee and that an officer, he could not identify which officer, placed their knee in his back, all during a two to five minute struggle to handcuff him.

PO Higgins and PO Montoni both said that § 87(2)(b) never gave any indication of giving up during the foot pursuit. PO Higgins acknowledged striking § 87(2)(b) with his asp and PO Montoni acknowledged bringing § 87(2)(b) to the ground, but both officers did not recall using any additional physical force against § 87(2)(b). If § 87(2)(b) had given up willingly, the force



would have been excessive, however if not, it would have been reasonable. § 87(2)(g)

It is therefore recommended that **Allegations G, H and I** be closed as **unsubstantiated**.

**Allegation J – Force: In the vicinity of § 87(2)(b) in the Bronx, PO Tony Montoni used a chokehold against § 87(2)(b)**

§ 87(2)(b) alleged that PO Montoni placed his expanded asp against the back of § 87(2)(b)'s neck and pushed down for nearly a minute. PO Montoni denied placing his asp against § 87(2)(b)'s neck and PO Higgins denied seeing PO Montoni do so. § 87(2)(g)

it is recommended that **Allegation J** be closed as **unsubstantiated**.

**Allegation K – Discourtesy: In the vicinity of § 87(2)(b) in the Bronx, PO Tony Montoni spoke discourteously to § 87(2)(b)**

During her phone statement, § 87(2)(b) said that in response to asking PO Montoni for § 87(2)(b)'s keys to care for his sick mother, PO Montoni said, “I don’t give a fuck.” § 87(2)(g)

it is recommended that **Allegation K** be closed as **victim uncooperative**.

**Allegation L – Abuse of Authority: At the PSA 8 stationhouse, Lt. Renee Lee authorized the strip search of § 87(2)(b)**

It is undisputed that Lt. Lee authorized the strip search of § 87(2)(b) at the stationhouse. A strip search may only be conducted when the arresting officer reasonably suspects that weapons, contraband or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by the previous search methods. NYPD Interim Order No. 5 (2009) (encl. A18-A20). A strip search shall be conducted only by a member of the same sex as the arrested person, in a secure area, in utmost privacy, and in the presence of no persons other than members of the service who are of the same sex as the person to be strip searched. NYPD Patrol Guide Section 208-05(c)(4) (encl. A21-A23).

§ 87(2)(g)

it is recommended that **Allegation L** be closed as **exonerated**.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g) [Redacted]  
[Redacted]  
[Redacted]  
[Redacted]  
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[Redacted].

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Team: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date